

CRIMINAL JUSTICE EDUCATION

Conservation Restriction on Property of Judith M. Hills
to Boxford Trails Association / Boxford Open Land Trust, Inc.

BASELINE DOCUMENTATION REPORT

Conservation Restriction Encumbering 21.77± Acres

Grantor:
Judith M. Hills

Grantee:
Boxford Trails Association / Boxford Open Land Trust, Inc.

Located:
17 Washington Street
Boxford, Massachusetts

Report Date:
December 7, 2007

Requested By:
Stephen J. Small, Esq., P.C.
Law Office of Stephen J. Small, Esq., P.C.
75 Federal Street, Suite 1100
Boston, MA 02110

Prepared By:
Nicholas R. Pratt, Assistant Project Manager
Real Estate Consulting Group
LandVest, Inc.
Ten Post Office Square
Boston, MA 02109

Report #8186

PROPERTY CONDITION CERTIFICATION

**Conservation Restriction on Property of Judith M. Hills
to Boxford Trails Association / Boxford Open Land Trust, Inc.**

This is to certify that Judith M. Hills, "Grantor", and the Boxford Trails Association / Boxford Open Land Trust, Inc., "Grantee", accept and acknowledge the accompanying baseline documentation as an accurate representation of the protected property known as Lot 2 at 17 Washington Street, Boxford, Massachusetts (the "Property"), at the time of the donation of the Conservation Restriction ("CR") on said Property from Grantor to Grantee. The baseline documentation was made available to Grantee prior to the date of the donation in compliance with Section 1.170A-14(g)(5)(i) of the federal tax regulations. This baseline documentation may be signed in counterparts, each of which together shall constitute one instrument.

The baseline documentation consists of:

1. Summary of the CR;
2. Exhibit B-1 and Exhibit B-2 Plans, prepared by Atlantic Engineering and Survey Consultants, Inc., dated November 13, 2007;
3. Orthophotograph Plan of the Property, prepared by LandVest, dated December 6, 2007;
4. Massachusetts Natural Heritage and Endangered Species Plan, prepared by LandVest, dated December 6, 2007;
5. Open Space Context Plan, prepared by LandVest, dated December 6, 2007;
6. Field Inspection and Municipal Certification Forms, completed by the Boxford Conservation Commission, dated October 12, 2007;
7. Photo Stations Plan of the Property, prepared by LandVest, dated December 6, 2007;
8. Photographs of the Property, taken by Nick Pratt on December 1, 2007;
9. Value ratio (to be inserted upon Grantor's submission to Grantee of federal gift acknowledgment Form 8283).

Dated: December, 2007

JUDITH M. HILLS, Grantor

By: J M Hills

BOXFORD TRAILS ASSOCIATION / BOXFORD OPEN LAND TRUST, INC., Grantee

By: William C. Gifford, President Boxford Trails Association

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8. Photographs
9. Value Ratio

Forestry, Agricultural and Recreational Uses

- Right to conduct forestry and agricultural activities for domestic or commercial purposes, including equestrian uses
- Right to clear brush and remove trees for the maintenance of agricultural or equestrian land
- Right to conduct non-commercial passive recreational uses such as horse back riding
- Right to clear and maintain improved trails and roads, except for commercial purposes

Wildlife Management

- Right to conduct selective cutting or clearing of vegetation for wildlife management purposes for habitat protection, fire protection, preservation, etc.

Other

- Right to pursue and regulate hunting and fishing
- Right to construct energy facilities as long as they are not allowed to be constructed within the
- Right of the owner to exercise the rights held by the Owner to carry on any activity
- Right to establish a lot or other building area
- Right to establish a lot or other building area to be conveyed to the owner of the
- A copy of any and all approved portions of the property for the owner's use

Other Provisions

- Any other provisions of the deed

1. SUMMARY OF THE CONSERVATION RESTRICTION

Purpose

- Property remains in its natural, scenic and open space condition.
- Provide drinking water supply protection.
- Maintain historic landscape and allow for agricultural use.
- Protect and promote wildlife habitat.

Reserved Rights

Residential Uses

- Right to construct a Residence (not to exceed 3,000 square feet in gross living area) and Associated Improvements within Limited Building Area A (which is not to exceed 2 acres).
- Right to trim and prune vegetation so as to maintain views of Johnson's Pond from the Residence on Limited Building Area A.
- Right to install utilities along the edge of the Fields if necessary
- Right to maintain a paved driveway within a 50' wide right of way along the edge of the Northeasterly Boundary of the Existing Tree Line Canopy.
- Right to install septic systems, sewer lines, wells or water lines if necessary.

Forestry, Agricultural and Recreational Uses

- Right to conduct forestry and agricultural activities for domestic or commercial purposes, including equestrian uses
- Right to clear brush and immature trees for the maintenance or restoration of pastureland and crop land
- Right to conduct non-commercial passive recreational uses such as horseback riding.
- Right to clear and maintain unpaved trails and access ways outside of the Fields.

Landscape Management

- Right to conduct selective cutting or clearing of vegetation and mowing and haying of fields or pastures for habitat protection, fire protection, preservation of vistas, etc.

Other

- Right to post against trespassing, hunting and fishing.
- Right to construct energy facilities to support allowed improvements, but not in the Fields.
- Right of the Grantor to assign the rights held by the Grantee to another qualified entity.
- Right to subdivide a lot to include Limited Building Area A
- Right to subdivide a lot to be conveyed to the owner of Lot 1
- Ability to convey unimproved portions of the property for boundary adjustment purposes.

Existing Improvements

- Small shed and old windmill

**Boxford Trails Association/Boxford Open Land Trust**

Post Office Box 95, Boxford, MA 01921 • Phone and Fax (978) 887-7031

January 18, 2008

Dear Judy and Lynn —

A long overdue letter of Thanks from BTA/BOLT, Inc! We deeply appreciate The Great effort you made in putting a conservation restriction on your beautiful property.

Generations will enjoy the view of the lovely hills, and the wild life and myriad plants, insects and tiny creatures will be able to continue to exist.

I know that we will all be good stewards of this land.

Again, Thank you for your far-sightedness and generosity.

Sincerely yours,
Natascha Grigg

Steve -

Lynn and I have made comments to one another on the final draft CR.

I have 2 issues which absolutely must be in place.

In 3, (make it j) -NO MOTORIZED VEHICLES except owners and farm vehicle. Don't know how I missed that and it is standard in every CR we have done - no motor cross, dirt bikes, etc

The other is a clarification re the "extra" building/s at 5,000 square feet - is it one bldg at a total of 5,000 square feet? Is it numerous small bldgs for a total of 5,000 sq feet, or numerous bldgs, each 5,000 square feet. Is it/ they to go on the limited bldg area or elsewhere.

Lawyer language for us English majors is really difficult to grasp sometimes. I would like the "accessory" barn/bldg made absolutely clear, please. The fewer questions and interpretations, the better.

I hope this is a freebie! But I have to protect the values that originally attracted us to this parcel.

Thanks.

Natasha

In a message dated 11/13/2007 6:15:25 P.M. Eastern Standard Time, stevesmall@stevesmall.com writes:

this is very mysterious. I can send pages, but I think it's two pages (first one and Notices). are they two things you need to talk to Lynn about or talk to me about? I won't bill for a few emails back and forth if this is the issue but you decide how to deal with this.....

See what's new at AOL.com and Make AOL Your Homepage.

Subj: **RE: CR sign off by Selectmen**
 Date: 11/13/2007 8:05:52 P.M. Eastern Standard Time
 From: stevesmall@stevesmall.com
 To: Mymol@aol.com

did you and Judith and Lynn reach agreement on these? I mean, really, I can shut the meter off but we need a doc - asap - that Grantor and Grantee agree to. No motorized vehicles is fine.
 there are two separate size limitations in the c.r.
 one is on the Residence, which must be within the LBA, and that is a 3000 square foot limit -- from the doc --

5.2 Limited Building Area A. Within Limited Building Area A, so identified on Exhibit B-2, attached hereto and incorporated herein by this reference, Grantor reserves the right (subject to the notice provisions of paragraph 11) to build, repair, remodel, expand, and replace one new Residence, so long as such structure does not exceed 3,000 square feet in gross living area, and Associated Improvements with respect to such Residence, provided that all improvements permitted by this paragraph 5.2 shall be confined within a contiguous building area not to exceed 2 acres in size. Grantor reserves the right to trim and prune vegetation so as to create a viewshed from the Residence to Johnson's Pond.

the other is the 5000 square foot limit, that applies to buildings for agriculture and forestry use only (barn, stable, even a riding ring that falls within the limit - but a 5000 square foot riding ring means no other structures under this provision) -- they can be anywhere on the property other than in the Fields; it can be one building or more than one, but the total aggregate size limitation is 5000 -- again, from the doc -- from 8.1(c) --

No improvements or other structures permitted under the provisions of this paragraph 8 may be constructed in the Fields, except for fences and one run in shed in each Field, such sheds to be located in the fence lines (i) adjacent to the existing tree lines at the rear of the Fields, as shown on Exhibit B-2, or (ii) in the case of the north Field the northeast border, or (iii) in the case of the south Field the southwest border. All new improvements or other new structures permitted under the provisions of this paragraph 8 (not including the permitted run in sheds) may not exceed a total of 5,000 square feet of ground coverage.

So I hope this is helpful -- you and Lynn and Judith reach agreement and tell me whatever changes (maybe only the NO Motorized vehicles) and I will do that and change your address and we will have a new doc, until someone comes up with other changes.....

From: Mymol@aol.com [mailto:Mymol@aol.com]
Sent: Tuesday, November 13, 2007 6:31 PM
To: stevesmall@stevesmall.com
Subject: Re: CR sign off by Selectmen

Subj: Re: Hills CR
 Date: 11/14/2007 12:42:50 A.M. Eastern Standard Time
 From: amsbox@comcast.net
 To: Mymol@aol.com, CHIPPIP@aol.com, rtford@comcast.net

Natasha,

The following are my comments on the proposed final version of the Hill CR:

1. In first paragraph, the P.O. Box and zip code for BTA/BOLT is incorrect (don't know why we all missed this before).
2. In the Whereas clause at the top of page 6, please note that Town Forest is under a CR and Anvil Farm is under APR (this is not reflected in the Whereas clause). Obviously no need change the CR to reflect this – I'm just pointing it out.
3. In my opinion, the revised paragraph 2.4 contains reasonable compromise language.
4. I agree that as worded the language permits multiple agricultural structures, the total ground coverage not to exceed 5,000 square feet (please also note that this would permit structures of multiple stories, provided the total *ground coverage* of the structures does not exceed 5,000 square feet). Please also note that section 4G allows for the construction of septic systems for permitted structures (that would include permitted agricultural buildings). Thus, if there are multiple buildings, there could (depending on the purpose of the building) be multiple septic systems outside the 2 acre building area (the constraints of 5.3 related to septic systems do not apply to the permitted agricultural buildings). I am taking no position regarding whether or not this language is reasonable - I am just pointing out what the language allows.
5. In reading through the CR, I note that the location of the fields, the edge of the fields and the tree line are critical to the interpretation of several paragraphs (see paragraphs 4(o) and 8). In paragraph 4(o), reference is made to "baseline documentation" to determine location of the "Fields" (I have not seen the baseline documentation, but apparently multiple Fields are separately identified in this documentation). Given that the definition of the current location of Fields is potentially so important, I am not a fan of having the location determined by baseline documentation, as opposed to an attached exhibit recorded with the CR, or a recorded plan. Baseline documentation could, over many decades, get lost or destroyed – recorded documents don't. I do not have Exhibit 2-B - is it detailed enough to depict the location of the Fields? If so, can't we reference it in paragraph 4(o) as opposed to using unrecorded "baseline documentation" to determine location of Fields? As I indicated in my e-mails of October 16th – I would prefer to see the location of the Fields depicted in a sufficiently detailed recordable document. Also, not having seen the "baseline documentation" I cannot comment on whether it has adequate specificity. Keep in mind that ten, twenty, or thirty years from now, BTA/BOLT may be called upon to determine exactly where run in sheds, other agricultural buildings and/or energy facilities can and cannot go – lack of specificity now could cause many headaches later.

Angela

----- Original Message -----

From: Mymol@aol.com
 To: amsbox@comcast.net ; CHIPPIP@aol.com ; rtford@comcast.net
 Sent: Tuesday, November 13, 2007 3:29 PM
 Subject: Fwd: Hills CR

See what's new at AOL.com and [Make AOL Your Homepage](#).

In a message dated 11/14/2007 7:48:39 P.M. Eastern Standard Time, stevesmall@stevesmall.com writes:

just got back to email - I will deal with nickodemo and check pagination and email out to all first thing tomorrow a.m. Thank you all!!

-----Original Message-----

From: Lynn Murrell [mailto:lynn.murrell@gmail.com]

Sent: Wednesday, November 14, 2007 7:26 PM

To: Stephen Small

Cc: Mymol@aol.com

Subject: Re: c.r.

Steve,

Looks good to me (except don't forget poor Mr. Nickodemo). Judy isn't home yet, but don't think she has any issues left.

Lynn

On 11/14/07, Stephen Small <stevesmall@stevesmall.com> wrote:

- > revised doc is attached - I added vehicles prohibition under new 3(i),
- > inserted "and vehicles for residential and farming and agricultural
- > purposes" under permitted uses in 4(b), fixed BTA address on first
- > page and under notices, added names and signature lines for Selectmen;
- > fixed former cross-reference to 3(i) to 3(j) under 11.2 approval
- > rules. I have not reviewed for page #s in Table of Contents but I
- > will do that if both of you tell me we are done, again, and I will
- > send final for selectmen, etc. I will be off email shortly for about
- > 6 hours but will return..... SJS

>

> -----Original Message-----

> From: Lynn Murrell [mailto:lynn.murrell@gmail.com]

> Sent: Wednesday, November 14, 2007 11:23 AM

> To: Stephen Small

> Subject: Re: c.r.

>

> Hi,

>

- > I just talked to Lynn and this sounds fine with us. Thanks for your
- > offer on the billing, we are feeling overwhelmed. Our main concern is
- > that we not have snowmobiles etc but want to use vehicles to maintain the
- > property etc.

> Judy

>

>

>

>

> On Nov 14, 2007 8:31 AM, Stephen Small <stevesmall@stevesmall.com> wrote:

- > > how about "no motorized vehicles for recreational use, including but
- > > not limited to motor bikes and snowmobiles" and then an addition of
- > > a clause in brackets under the existing reserved rights 4(b) and
- > > undertake activities (including but not limited to the use of
- > > temporary structures [and vehicles for residential and farming and
- > > agricultural
- > > purposes]) reasonably necessary to carry out the rights reserved to
- > > Grantor;

>

>

>

> -----Original Message-----

> From: Lynn Murrell [mailto:lynn.murrell@gmail.com]

>

> > Subject: Re: c.r.

> > Well how do you define no motorized vehicles, does that mean no
> > farm vehicles or does it mean only recreational vehicles. How do you
> > define it so it is not too restrictive? I certainly do not want motor
bikes etc.

>>

> > >

> > I dont mind the no motorized vehicles change but that's your call
> > - it is pretty standard. I don't agree with the one-building
> > limitation; I think the square foot limit works. anyway let me
> > know

> > > Sent: Wednesday, November 14, 2007 6:31 AM

> > > Subject: Re: c.r.

> > >

> > will wait to hear from her.

>>>

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> > > >

> > > >

> > > record

> > > and to my knowledge EOEA has never raised any objections to

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> > > agree)
> > > address)
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>>> after 630 pm - and maybe we can (again) wrap this up. Thanks!! SJS

> > > >

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>>>> Stephen J. Small, Esq.

>>>>

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>>>> 75 Federal Street, Suite 1100

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>>>> Boston, MA 02110-1911

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>>>> Phone: 617-357-4012

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>>>> Fax: 617-357-1857

>>>>

>>>> www.lawofficeofstephenssmall.com

>>>>

>>>> stevesmall@stevesmall.com

>>>>

Subj: Re: Final CR
Date: 10/21/2008 9:02:51 P.M. Eastern Daylight Time
From: lynn.murrell@gmail.com
To: Mymol@aol.com

Natasha,

Thank you for your help with the 8283.

I was cleaning up my files and noticed that the last page of the Baseline Documentation Report states that the Grantor is to calculate a Value Ratio after submission of the 8283. Is that something you can do and provide us with a copy? Do you need anything else from us?

Lynn

On Wed, Oct 8, 2008 at 4:20 PM, <Mymol@aol.com> wrote:

Lynn -

Am attaching the final CR.

I will have to go back to the office to retrieve the copy with Judith's signature on it. Our office is not manned, but functions more as a storage area for our documents, so rarely is anyone available to send/retrieve anything. Will FAX it to you tomorrow. Sorry.

Natasha

New MapQuest Local shows what's happening at your destination. Dining, Movies, Events, News & more. Try it out!

Subj: **Re: Final CR**
Date: 10/25/2008 2:52:25 P.M. Eastern Daylight Time
From: Mymol
To: lynn.murrell@gmail.com

Lynn -

I have signed form 8283, without actually knowing the change in value of the property, only because there is the caveat that this acknowledgement does not represent agreement with the declared value. I cannot calculate the value ratio without all the numbers - how much it was worth and how much is the land worth now... Am I getting something wrong? In any case, the form has been returned to you and I presume, sent on to the IRS.

As we had discussed, BTA/BOLT will be walking/monitoring your CR on October 29, rain date October 30 at 10:00 AM

Thanks.
Natasha

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Form 8283 (Rev. 12-2006)

Page 2

Name(s) shown on your income tax return

Lynn A. Murrell & Judith M. Hills

Identifying number

442-40-3362

Section B. Donated Property Over \$5,000 (Except Certain Publicly Traded Securities)—List in this section only items (or groups of similar items) for which you claimed a deduction of more than \$5,000 per item or group (except contributions of certain publicly traded securities reported in Section A). An appraisal is generally required for property listed in Section B (see instructions).

Part I Information on Donated Property—To be completed by the taxpayer and/or the appraiser.

4 Check the box that describes the type of property donated:

☐ Art* (contribution of \$20,000 or more)☐ Art* (contribution of less than \$20,000)☐ Collectibles**☒ Qualified Conservation Contribution☐ Other Real Estate☐ Intellectual Property☐ Equipment☐ Securities☐ Other

*Art includes paintings, sculptures, watercolors, prints, drawings, ceramics, antiques, decorative arts, textiles, carpets, silver, rare manuscripts, historical memorabilia, and other similar objects.

**Collectibles include coins, stamps, books, games, jewelry, sports memorabilia, dolls, etc., but not art as defined above.

Note. In certain cases, you must attach a qualified appraisal of the property. See instructions.

	(a) Description of donated property (if you need more space, attach a separate statement)	(b) If tangible property was donated, give a brief summary of the overall physical condition of the property at the time of the gift	(c) Appraised fair market value
A	<u>Conservatory Restoration</u>		<u>945,066.00</u>
B	<u>(See Separate Statement)</u>		
C			
D			

	(d) Date acquired by donor (mo., yr.)	(e) How acquired by donor	(f) Donor's cost or adjusted basis	(g) For bargain sales, enter amount received	(h) Amount claimed as a deduction	(i) Average trading price of securities
A	<u>June 1988</u>	<u>Gift</u>	<u>700.00</u>			
B	<u>Sept. 2005</u>	<u>Inheritance</u>	<u>1,000,000.00</u>			
C						
D						

Part II Taxpayer (Donor) Statement—List each item included in Part I above that the appraisal identifies as having a value of \$500 or less. See instructions.

I declare that the following item(s) included in Part I above has to the best of my knowledge and belief an appraised value of not more than \$500 (per item). Enter identifying letter from Part I and describe the specific item. See instructions. ▶

Signature of taxpayer (donor) ▶

Date ▶

Part III Declaration of Appraiser

I declare that I am not the donor, the donee, a party to the transaction in which the donor acquired the property, employed by, or related to any of the foregoing persons, or married to any person who is related to any of the foregoing persons. And, if regularly used by the donor, donee, or party to the transaction, I performed the majority of my appraisals during my tax year for other persons.

Also, I declare that I hold myself out to the public as an appraiser or perform appraisals on a regular basis, and that because of my qualifications as described in the appraisal, I am qualified to make appraisals of the type of property being valued. I certify that the appraisal fees were not based on a percentage of the appraised property value. Furthermore, I understand that a false or fraudulent overstatement of the property value as described in the qualified appraisal or this Form 8283 may subject me to the penalty under section 6701(a) (aiding and abetting the understatement of tax liability). In addition, I understand that a substantial or gross valuation misstatement resulting from the appraisal of the value of the property that I know, or reasonably should know, would be used in connection with a return or claim for refund, may subject me to the penalty under section 6695A. I affirm that I have not been barred from presenting evidence or testimony by the Office of Professional Responsibility.

Sign

Here Signature ▶

Title ▶

Date ▶

Business address (including room or suite no.)

Identifying number

City or town, state, and ZIP code

Part IV Donee Acknowledgment—To be completed by the charitable organization.

This charitable organization acknowledges that it is a qualified organization under section 170(c) and that it received the donated property as described in Section B, Part I, above on the following date ▶ November 11, 2007

Furthermore, this organization affirms that in the event it sells, exchanges, or otherwise disposes of the property described in Section B, Part I (or any portion thereof) within 3 years after the date of receipt, it will file Form 8282, Donee Information Return, with the IRS and give the donor a copy of that form. This acknowledgment does not represent agreement with the claimed fair market value.

Does the organization intend to use the property for an unrelated use? ▶ ☐ Yes ☒ No

Name of charitable organization (donee)

BTA/BOLT, Inc.

Employer identification number

04 2649404

Address (number, street, and room or suite no.)

P.O. Box 95, BOXFORD MA 01921

City or town, state, and ZIP code

BOXFORD MA 01921

Authorized signature

Maralsha Grigg

Title

PRESIDENT

Date

10/09/08

Printed on Recycled Paper

Form 8283 (Rev. 12-2006)